

Bihar Staff Selection Commission Rules, 2003

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State of Bihar - Act

Bihar Staff Selection Commission Rules, 2003

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Bihar Staff Selection Commission Rules, 2003

Rule BIHAR-STAFF-SELECTION-COMMISSION-RULES-2003 of 2003

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Bihar Staff Selection Commission Rules, 2003

Published vide Notification No. 7/K. CH. AA.-03/2002-3606/, dated 31.05.2003

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No. 7/K. CH. AA.-03/2002-3606/. - In exercise of the powers conferred under section 12 (1) of Bihar Staff Selection Commission Act, 2002, Governor of Bihar is pleased to make the following rules ; -

1.

Short title, extent and commencement.

(1)

These rules shall be called "The Bihar Staff Selection Commission Rules, 2003.

(2)

It shall extend to the whole of the State of Bihar.

(3)

It shall come into force at once.

2.

Definitions.

- In these Rules unless there is anything repugnant in the subject or the context :

(a)

"State Government" means the State Government of Bihar;

(b)

"Act" means the Bihar Staff Selection Commission Act, 2002 (Bihar Act No. 7 of 2002);

(c)

"Commission" means the Bihar Staff Selection Commission and it includes the Chairman and all other Members:

Provided that in the case of absence of one or more Members on leave or otherwise, the Commission shall be deemed to be constituted comprising of the Chairman and at least one member;

(d)

"Chairman" means the Chairman of the Bihar Staff Selection Commission appointed by the State Government under section-3 of the Act;

(e)

"Member" means a member of the Bihar Staff Selection Commission appointed by the State Government under section-3 of the Act;

(f)

"Service and Cadre" means a service or a cadre in which for appointment the recommendation of the Commission is required under section 5 of the Act;

(g)

"Post" means any post to which for appointment, the recommendation of the Commission is required under section 5 of the Act;

(h)

"Secretary" means the Secretary of the Commission appointed by the State Government including the officer authorised by the Chairman to perform the function of the Secretary, in the absence of the Secretary on account of his being on leave or otherwise.

3.

Power and functions of the Commission.

(1)

The Commission may recommend for appointment in or to all the general, technical and non-technical services, cadres, and posts of the pay scale below 6500-10500 (or equivalent scale of pay as revised from time to time) as specified in Schedule-1 for different departments, attached offices of the Secretariat of the State government, Regional, District and Mufassil offices as per section 5 of the Act.

(2)

The recommendations of the Commission will be valid for one year with effect from the date of recommendation:

Provided that the Commission shall have the power to revalidate its recommendation for further one year.

4.

Transaction of Business of the Commission.

- The transaction of business of schedule 2 and schedule 3 of these Rules shall be made by the Commission and the Chairman of the Commission respectively.

5.

Status and facilities of the Chairman.

- The post of the Chairman of the Commission shall be of an officer of Indian Administrative Service in the pay scale not below super time scale. All the facilities admissible to the Secretary of a department shall be available to the Chairman of the Commission.

6.

Status and facilities of the member of the Commission.

- The post of the Members of the Commission shall be of the officers of All India Services / State Services in the pay

scale of not below Rs. 14300-18300 (or equivalent pay scale revised from time to time). The members of the Commission shall be eligible for all the facilities admissible to officers of equivalent rank.

7.

Functions and Responsibility of the Members of the Commission.

- The Members of the Commission shall execute the business allocated to them by the Chairman.

8.

Proceeding of the Meetings of the Commission.

(1)

All decisions of the Commission shall be recorded in the meeting itself by the Secretary or any other officer authorised by the Chairman. If any member has a dissent view from any decision, it shall be recorded in the proceeding. In case of difference of opinion the decision shall be taken by majority.

(2)

The proceeding of the meeting shall be confirmed in the next meeting of the Commission.

(3)

The decisions of the Commission shall be communicated through a letter signed by the Secretary or by an officer authorised by the Chairman.

(4)

The proceedings of the Commission will be confidential and those will not be communicated without the permission of the Commission.

9.

Financial Powers.

(1)

Within the budget allocation the Commission shall have the full power of the Department to purchase, to execute contract and to sanction any other expenditures for office administration except purchase of a motor vehicle and computer exceeding Rs. One Lakh. Provided that the Commission shall have the power to execute contract and to sanction any other expenditure exceeding Rs. one lakh for conducting the examination. For the contingent expenses the Chairman shall have the power under rule 110 (2) of Bihar Financial Rules.

(2)

The Commission shall have power to sanction advance and draw of money from treasury for more than Rs. ten thousand (10,000) for conduct of examination as per the terms and conditions laid down in Rule 300 of Bihar Treasury Code. The Chairman of the Commission shall have this power upto Rs. 10,000. In cases related to purchase, advance money shall be drawn from treasury only when there is such condition in the approved tender.

(3)

Procedure laid down in Item 39 of Annexure 5 of the Bihar Financial Rules Part-II shall be applicable in the matters related to printing of question papers and evaluation of answer sheets.

(4)

The Commission shall keep the amount received from Government and the amount received by miscellaneous receipts in a bank by opening an account. There shall be a separate bank account for the fees received from the candidates and this amount shall be deposited in the treasury under receipt Head "0051 public service commission- 104 staff selection commission- examination fee" immediately in any case by the end of the month. The detail of the revenue received as fee shall be sent to the department of Personnel and Administrative Reforms every year.

10.

Leave to the Chairmen and Members of the Commission.

- The procedure for sanction of leave to the Chairman and the Member of the Commission shall be the same as applicable to the officers of the equivalent rank. In the absence of the Chairman on account of leave or otherwise senior most member shall hold the charge of the administrative works of the Chairman.

11.

Officers and Staff of the Commission.

(1)

Strength of post of the subordinate officers and staff for conduct of the business of the Commission shall be the same which may be sanctioned by the Government from time to time. The officers and staff shall be made available against

the sanctioned strength of post by the Department of Personnel and Administrative Reforms.

(2)

The conditions of service of the officers and staff of the Commission shall be the same which are applicable to the Government servants. The rules, resolutions, orders regarding disciplinary action as applicable to the government servants of equivalent rank shall be applicable to the officers and staff of the commission.

(3)

The Commission may engage on contract the services of persons for specified period for smooth conduct of the examinations in addition to the post sanctioned by the Government on the basis of advertisement and the Commission shall terminate their services as soon as the examination procedure is over. The Commission shall obtain the prior approval of the State Government on the number of such persons to be engaged and on the rate of the amount payable to them.

12.

(1)

Annual expenditure on establishment of the Commission shall be borne by the department of Personnel and Administrative Reforms by providing the required fund under its budget head.

(2)

The Commission shall prepare the budget estimates of every year and send it to the Department of Personnel and Administrative Reforms so that it may be included in the budget of the Department.

13.

The Controlling officer of the Commission or the Chairman shall control over the expenditure and execute the responsibilities conferred under Rules 471-483 of Bihar Financial Rules. Maintenance of account and its audit will be done as per the procedure prescribed by the State Government. Relevant informations and reports in this regard shall be made available by the Commission to the Department of Personnel & Administrative Reforms from time to time.

Schedule 1

Details of the services, cadres and posts

(See Rule 3)

A. Secretariat post

(1)

Assistant

(2)

Stenographer

(3)

Lower Division Clerk

(4)

Vehicle Driver

(5)

Statistical Assistant

B. Regional/District Level post

(1)

Muffasil Clerk

(2)

Revenue Clerk

(3)

VLW

(4)

Panchayat Sewak

(5)

Amin

(6)

Gram Panchayat Supervisor

(7)

Cooperative Ext. Officer

(8)

Block Agriculture Ext. Officer

(9)

Labour Inspector

(10)

Jr. Statistical Supervisor

(11)

Junior Engineer

(12)

Sub Inspector of Police

(13)

Assistant Sub Inspector of Police

(14)

Primary Teacher

(15)

Wireless Operator

(16)

Circle Inspector- cum-Kanoongo

(17)

Supply Inspector

(18)

Weight & Measures Inspector

Note. - All other posts of Secretariat and Mufassil level in the pay scale below 6500-10500 shall be deemed to be included in this schedule.

Schedule 2

Business to be transacted by the Commission

(1)

Annual report of the Commission.

(2)

Scheme of examinations and syllabus under Rules made under section 12 (2) of the Act.

(3)

All cases in which a new policy is required to be formulated for submission to Government.

(4)

All cases in which the existing policy is required to be amended/revised for submission to Govt.

(5)

All cases in which a decision is required to be taken regarding framing of rules for holding competitive examinations for recruitment to posts and services.

(6)

Such cases where on recruitment rules have been framed and Commission has to formulate the procedure of recruitment.

(7)

Submit to the Government Rules of Procedure of the Commission for transacting its business.

(8)

Submit proposals for exclusion from Commission's purview or extension of function of the Commission for the approval of the Government.

(9)

Issues related to research of examination system.

(10)

Preparation of panel for constituting of Interview Boards.

(11)

Preparation of panel of Advisers/Experts and structure of the Board.

(12)

Fixing the dates of interview.

(13)

Fixing the dates of examination and centres of examinations and the venue of evaluation centres.

(14)

Preparation of panel of Advocates.

(15)

Advertisements and notification for recruitment and selection of newspapers in which advertisements are to be published.

(16)

Approval of results of examinations and interview.

(17)

System development and other works pertaining to technical aspect of Data Processing and Electronic Data Processing Branch.

(18)

Review of answer books on application of candidates.

(19)

Any other matter which the chairman places before the Commission for consideration and decision.

(20)

Any other matter not covered by these rules and to be sent to the Government for approval after drafting the proposal.

Schedule 3

Business to be transacted by the Chairman

(1)

General administration of the Commission.

(2)

Co-ordination of Commission's work including convening of the meeting of the Commission.

(3)

Allocation of business amongst the members.

(4)

Endorsement of any file for examination to any member nominated by the Chairman.

(5)

Appointment of paper-setters, moderators and examiners.

(6)

Approval of printing of question papers.

(7)

The Chairman may place any specific matter before Commission for disposal as per necessity or in public interest.

(8)

Scrutiny of statement of facts or filing of affidavit in court cases.

(9)

Formation of Board from the panel approved by the Commission and fixing the dates of interview.

(10)

Power to engage the Advocates from the panel approved by the Commission.

(11)

Matter entrusted by the Commission in work interest.

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